



Northern Ireland (Border Poll) Act 1972

1972 CHAPTER 77

An Act to provide for the holding in Northern Ireland
of a poll with respect to the border.

[7th December 1972]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Holding of
border poll in
Northern
Ireland.

1.—(1) With a view to enabling the people of Northern Ireland as a whole to make known their wishes, a poll with respect to the border shall be held in Northern Ireland in accordance with the following provisions:—

- (a) the poll shall be held on such date as the Secretary of State may by order direct, and those entitled to vote on the poll shall be those who would be entitled to vote on polls held on that date at a general election to the Parliament of Northern Ireland;
- (b) the questions to be asked of those voting on the poll shall be the alternative questions in the form set out in the Schedule to this Act, and the front of the ballot paper shall be in that form;
- (c) save as provided by or under this section, the poll shall be conducted, and the cost shall be defrayed, as if (on the dissolution of the present Parliament of the United Kingdom) polls were being held throughout Northern Ireland at a general election to the Parliament of the United Kingdom with that polling day.

(2) The Secretary of State may by order make such further provision as to the conduct of the poll and matters connected therewith as may appear to him to be expedient, including provision modifying or excluding for the purpose of the poll any enactment or statutory provision that would by virtue of subsection (1)(c) above apply apart from the order, or applying with or without modification any other enactment or statutory provision with respect to parliamentary elections.

(3) The power of the Secretary of State to make orders under this section shall be exercisable by statutory instrument but no such order shall be made unless a draft of the order has been approved by a resolution of each House of Parliament.

(4) Any order made by the Secretary of State under this section may be varied or revoked by a further order made by him.

2.—(1) There shall be paid out of money provided by Parliament any costs incurred in connection with the poll under this Act. ^{Financial provisions.}

(2) There shall be paid out of the Consolidated Fund, or as the case may be out of money provided by Parliament, any increase attributable to this Act in the sums so payable under any other Act, and there shall be paid into the Consolidated Fund any sums so payable under or in consequence of the provisions of this Act.

3. This Act may be cited as the Northern Ireland (Border Short title. Poll) Act 1972.

SCHEDULE**FORM OF BALLOT PAPER**

Do you want Northern Ireland to remain part of the United Kingdom?

A

If so, put an × in this box...

☐**OR**

Do you want Northern Ireland to be joined with the Republic of Ireland, outside the United Kingdom?

B

If so, put an × in this box...

☐